

BLAKE, et al v SAN ANDREAS SNF OPERATIONS, LLC, et al

24CV47533

**PLAINTIFF’S MOTION TO STRIKE ANSWER;
DEFENDANTS’ MOTION TO COMPEL COMPLIANCE
WITH SETTLEMENT AGREEMENT**

This civil action involves claims for elder abuse, neglect, and wrongful death brought by Linda Cooper, Barry Blake, Arthur Blake, Virginia Blake (as successor in interest to Glenn Blake), as individuals and as successors in interest to their mother, Decedent Thelma Blake (“Decedent”) (collectively, “Plaintiffs”) against multiple Defendants.

Now before the Court is Plaintiff’s motion to strike the Answer filed by Avalon Care Center – San Andreas, LLC, Avalon Care LLC, Avalon Health Care, Inc., Avalon Holding, Inc., Avalon Health Care Management, Inc. and Charles Kirton (“Avalon Defendants.”) Simultaneously, there is a motion to compel compliance with settlement agreement filed by Defendants.

I. Factual and Procedural Background

A. Background Facts

At all relevant times, the Decedent was a 96-year-old woman who qualified as an “elder” under Welfare and Institutions Code section 15610.27. (Complaint ¶ 10.) Defendant San Andreas SNF Operations LLC dba Golden San Andreas Care Center (“Care Center”) was in the business of providing continuous skilled nursing care as a twenty-four-hour facility as defined in 72103 of Title 22 of the California Code of Regulations and California Health and Safety Code section 1250(c). (*Id.* ¶ 15.) On May 11, 2023, Decedent was admitted to Care Center for daily custodial care. (Declaration of Paige Farris (“Farris Decl.”) ¶ 2.) It is alleged that while Decedent was a resident of the Care Center, she was neglected and that Care Center failed to monitor, diagnosis and treat a urinary tract infection (“UTI”) which eventually contributed to Decedent’s death. (*Id.* ¶ 28.)

Plaintiffs allege that at all relevant times, Care Center was collectively owned by a myriad of businesses, all of which are named as Defendants herein, including CaFive Operations Holdings, LLC; CH CaFive Holdings LLC, IY Evergreen CA Holdings, LLC (collectively “Evergreen Defendants”) and the Avalon Defendants. Plaintiffs allege that the Evergreen Defendants and Avalon Defendants were “joint venturers in the enterprise of owning, operating, and managing” the Care Center. (Complaint ¶ 19.) Plaintiff alleges that the Evergreen Defendants and Avalon Defendants “owned, operated, and managed multiple skilled nursing facilities in California and are the alter egos of each other and/or a single enterprise.” (*Id.* ¶ 21.) Plaintiffs allege that all of these entities and their subsidiaries had the same corporate office and management team and used the same management company to operate each separate care facility. (*Ibid.*) Plaintiffs further allege that the various Defendants utilized management practices, funding schemes, financial diversions and other tactics to understaff Care Center to the detriment of the patients.

Plaintiffs filed their Complaint on August 6, 2024. On October 3, 2024, Defense Counsel Kathleen Rhoads of the law firm GRSM filed an Answer on behalf of the Avalon Defendants. (Declaration of Paige Farris (“Farris Decl.”) ¶ 4, Ex. A.) At some point, the law firm of GRSM let Plaintiffs’ counsel know that they did not represent the Avalon Defendants and did not have authority to file an Answer on their behalf. (*Ibid.*) It appears this took place about one year later in September of 2025. (Farris Reply Decl. ¶ 3.) On March 10, 2026, Plaintiffs’ counsel emailed counsel at GRSM reiterating the conversation about not representing the Avalon Defendants and asking that the Answer be withdrawn. (Farris Decl. ¶ 5, Ex. B.) Attorney Lindsay Romano with GRSM confirmed that the Answer would be withdrawn. (*Ibid.*) For the next few weeks Plaintiffs’ counsel continued to correspond with GRSM seeking confirmation that the Answer would be withdrawn as to the Avalon Defendants without results. (*Ibid.*)

II. Legal Standard and Discussion

A. Motion to Strike

A motion to strike lies either to strike: (1) any “irrelevant, false or improper matter inserted in any pleading”; or (2) any pleading or part thereof “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

“There is a presumption that an attorney has authority to appear for any person for whom he professes to act [citation], but this presumption is disputable [citation].” (*Wilson v. Barry* (1951) 102 Cal.App.2d 778, 780.) Here there is ample evidence that the law firm of GRSM did not represent the Avalon Defendants at the time they filed an Answer on their behalf. First, attorney Lindsay Romano with GRSM avers “At the time of the filing of the Answer on behalf of the Avalon Defendants, GRSM had not yet formally been retained to act on behalf of the Avalon Defendants or Avalon Care Center—San Andreas, LLC.” (Declaration of Lindsay Romano (“Romano Decl.”) ¶ 12.) Nonetheless, they filed an Answer on behalf of the Avalon Defendants in October and December of 2024. (*Id.*, ¶¶ 8-11, Exs. C and D.)

On March 10, 2026, Plaintiffs’ counsel sent email correspondence specifically asking if the Answer filed by Avalon would be withdrawn since GRSM did not represent them. (Farris Decl. ¶ 5, Ex. B.) To that very specific email, GRSM attorney Romano responded, “Yes, we can do that.” (*Ibid.*) Thus, even two years after filing an Answer on behalf of the Avalon Defendants – which represented to the Court the authority to represent those defendants – GRSM continued to agree that it did not have authority to file that Answer in 2024.

The issue of representation is somewhat convoluted, including payment by the GRSM law firm for first appearance fees on behalf of all defendants. However, the key for the Court is paragraph 17 of the Declaration of Lindsey Romano where she expresses “On April 14, 2026, via email, I advised Counsel for Plaintiffs that GRSM *now* represents the Avalon Defendants”. [Emphasis added.] This makes clear that GRSM did not have authority to file an Answer on behalf of the Avalon Defendants in 2024, continued to express to Plaintiffs’ counsel in September of 2025 that they were not representing the Avalon Defendants (Farris Reply Decl. 3), and continued to represent to Plaintiff’s counsel that this was true as late as March of 2026. Plaintiff’s counsel avers that she relied - to her client’s detriment - on GRSM’s representation that it represented and spoke for the Avalon Defendants. (Farris Reply Decl. 2). Had Plaintiff’s counsel been aware that the Avalon Defendants’ Answer was filed without authority, she would have operated under the belief that the Avalon Defendants were not represented by GRSM when she provided the settlement demand on behalf of her clients only as to the Evergreen defendants.

The Court is somewhat baffled that GRSM would file an Answer on behalf of entities that they were not retained to represent. (Cal. Bus. & Prof. Code §6104.) It is further concerned that GRSM allowed Plaintiffs’ counsel to believe it did not represent the Avalon Defendants throughout the course of this litigation and only purported to have an attorney-client relationship once a settlement demand had been made.

Plaintiff’s motion to strike the answers filed by the Avalon Defendants is **GRANTED**.

[The Court notes this tentative ruling had been issued on a previous calendar but was continued to this calendar at Defendants’ request to determine if the Ruling on their

motion to enforce settlement might render the decision moot; for the reasons expressed below, it does not.]

B. Motion to Enforce Settlement Agreement

Pursuant to Code Civil Procedure section 664.6(a):

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Here, the Demand was not made orally before the Court, thus, prior to the Court having any authority to enforce a settlement agreement, the settlement must be “signed by the parties.” Pursuant to subsection (b), a writing is signed by a party if it is signed by 1) the party, 2) an attorney who represents the party, or 3) an insurer who is defending and indemnifying a party to the action. However, an insurer does not “sign” on behalf of party if the insured would be liable under the settlement for any amount above the policy limits. “Strict compliance” with the terms of the statute is required before any Court may accept or enforce a settlement agreement. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 38.)

Here, there is no signed settlement agreement before the Court evidencing an agreement between Plaintiffs and the Avalon Defendants. There is a demand letter, and then an email accepting the Demand. However, there are no signed documents by the Avalon Defendants.

Even if the Court were to construe Ms. Romano’s March 6, 2026, email accepting the Demand as a “writing” by an attorney, it is abundantly clear that at the time she accepted the offer on behalf of “our client and their insureds” she did not represent the Avalon Defendants. As such, her written acceptance of the Demand could not have been made on behalf of the Avalon Defendants because she was not their attorney at that time.

“Section 664.6 creates only a summary procedure for specifically enforcing certain types of settlement agreements by converting them into judgments.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797.) Before a Court can enforce a settlement pursuant to this limited statutory scheme, there must be a contract formed and a “writing signed by the parties.” (*Ibid.*) There is no evidence that there is a writing signed by the Avalon Defendants which would comply with the requirements of 664.6

Accordingly, the motion to enforce the settlement pursuant to that statutory section is DENIED.

III. Conclusion

Plaintiffs' motion to strike the Answers of the Avalon Defendants is **GRANTED**. The motion to enforce settlement pursuant to section 664.6 is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit formal Orders and Judgment complying with Rule 3.1312 in conformity with this Ruling.

NISKANEN, et al v PIEROTTI, et al

25CV48291

**PLAINTIFF'S MOTION TO COMPEL RESPONSES TO
REQUEST FOR PRODUCTION OF DOCUMENTS;
DEFENDANT PIEROTTI'S DEMURRER
AND MOTION TO STRIKE**

This case involves claims of unfair business practices and fraud brought by Brian Niskanen ("Brian"), Alicia Niskanen ("Alicia"), Willem Emmer ("Willem"), Cindy Emmer ("Cindy"), Kevin Mead ("Kevin"), and Karen Mead ("Karen") (collectively "Plaintiffs") against John Pierotti ("Pierotti"), Greenhorn Creek Design Review Committee ("Committee") and Greenhorn Creek Design Review, LLC ("LLC") (collectively, "Defendants.")

Now before the Court are multiple motions: 1) Defendants' demurrer to the First Amended Complaint ("FAC"), 2) Defendant's Motion to Strike the FAC, and 3) Plaintiffs' Motion to Compel discovery responses.

The Motion to Strike and the Motion to Compel do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice: